

specificity of the statute would mark it as punishment, for there is rarely any valid reason for such narrow legislation; and normally the Constitution requires Congress to proceed by general rulemaking rather than by deciding individual cases. *United States v. Brown*, 381 U. S. 437, 442-446.

Like the Court, however, I am persuaded that "appellant constituted a legitimate class of one . . ." *Ante*, at 472. The opinion of the Court leaves unmentioned the two facts which I consider decisive in this regard. Appellant resigned his office under unique circumstances and accepted a pardon² for any offenses committed while in office. By so doing, he placed himself in a different class from all other Presidents. Cf. *Orloff v. Willoughby*, 345 U. S. 83, 90-91. Even though unmentioned, it would be unrealistic to assume that historic facts of this consequence did not affect the legislative decision.³

Since these facts provide a legitimate justification for the specificity of the statute, they also avoid the conclusion that this otherwise nonpunitive statute is made punitive by its specificity. If I did not consider it appropriate to take judicial notice of those facts, I would be unwilling to uphold the power of Congress to enact special legislation directed only at one former President at a time when his popularity was at its nadir. For even when it deals with Presidents or former Presidents, the legislative focus should be upon "the calling" rather than "the person." Cf. *Cummings v. Missouri*, 4 Wall. 277, 320. In short, in my view, this case will not be a precedent for future legislation which relates, not to the Office of President, but just to one of its occupants.

² See *Burdick v. United States*, 236 U. S. 79, 94.

³ Cf. *Calder v. Bull*, 3 Dall. 386, 390:

"That Charles 1st. king of England, was beheaded; that Oliver Cromwell was Protector of England; that Louis 16th, late King of France, was guillotined; are all facts, that have happened; but it would be nonsense to suppose, that the States were prohibited from making any law after either of these events, and with reference thereto."